

**BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY (BPPRA),
QUETTA**

PRC Appeal No. 16/2025

M/s A.H.S. Brothers,
Through its Counsel,
Mr. Akbar Shah Advocate

...Appellant

Versus

1. Government of Balochistan,
Through Secretary, Public Health Engineering Department, Quetta.
2. Chief Engineer (North), Public Health Engineering Department, Quetta.
3. Superintending Engineer (Loralai Area Circle), Chairman CRC.
4. Executive Engineer, PHE Zhob Division, Member Procurement Committee.
5. Members, Procurement Committee, PHE Division Zhob.

... Respondents

Quorum

1. Habib ur Rehman Jamot.....MD BPPRA / Chairman
2. Mubashir Ali Khan (FCIPS).....Procurement Specialist (Goods & Services) BPPRA / Member
3. Junaid Shah.....Procurement Specialist (Works) BPPRA /Member
4. Iftikhar Ahmed Mir..... Retd. Chief Engineer /Technical Member
5. Abdul Hayee Baloch.....Advocate /Private Member

DECISION

Date of Decision: 21st November 2025

1. Background and Facts:

This Appeal has been filed under **Rule 56-A of the Balochistan Public Procurement Rules, 2014**, and all other enabling provisions of law, by the Appellant **M/s A.H.S. Brothers** against the **Evaluation Report dated 01.10.2025** pertaining to **TSE No. 252608809923**, issued by the **Public Health Engineering Department (PHE), Zhob Division** for the project titled **"Construction and Solarization of 15 Nos. Water Supply Schemes in Zhob District including Kibzai, Khost, Babar, Abdullah Zai, Lwara, and Wala Akram."** The estimated cost of the project is Rs. 74.122 million.

The Appellant participated in the bidding process along with five other firms. Upon evaluation, the procurement committee declared **M/s Nawabzada Zulqarnain Jogezi & Sons** as the lowest (successful) bidder, and the Appellant as the second lowest. Aggrieved by this evaluation, the Appellant invoked Rule 56-A of the BPPRA Rules, 2014.

2. Appellant's Contentions:

The Appellant raised several objections summarized as follows:

1. **Violation of Rule 15 of the BPPRA Rules, 2014** – The Appellant contended that the tender was not advertised in the print media as required by Rule 15(2), which mandates advertisement in at least two leading Urdu and English newspapers for procurements exceeding two million rupees. The Appellant alleged this amounted to *mis-procurement* and was contrary to the spirit of transparency.
2. **Non-compliance with Bid Requirements** – It was asserted that the declared lowest bidder, M/s Nawabzada Zulqarnain Jomezai & Sons, did not submit:
 - o Rate analysis, despite quoting rates **below 10%** of the estimated cost, as required under Clause 40 of the Evaluation Criteria; and
 - o A valid **Bank Guarantee/CDR** along with the financial bid, contrary to Clause 42 of the bidding document.
3. **Failure of CRC to Decide the Grievance** – The Appellant submitted that an application was duly filed before the **Complaint Redressal Committee (CRC)** on 02.10.2025, but it was never decided, allegedly violating the Appellant's right to a fair hearing under **Article 10-A** of the Constitution of Pakistan, 1973.
4. **Reliance on Legal Precedents** – The Appellant cited several judgments (2025 MLD 385; 2025 CLC 348; 2024 MLD 203; 2024 CLC 325) to emphasize that actions required by law must be performed strictly in the prescribed manner, and deviation renders the act void.

Accordingly, the Appellant prayed that the Evaluation Report dated 01.10.2025 be declared null and void, and that the bidding process be halted under Rule 56-A(6) pending final adjudication.

3. Respondents' Version:

Upon issuance of notices, the respondents appeared and filed a written reply, raising the following points:

1. The Department stated that the tender was duly **submitted to the DGPR for publication** and was also uploaded on the **BPPRA website**, satisfying the minimum requirement of Rule 15.
2. The Respondent contended that no objection was raised by the Appellant at the time of bidding, which indicates acquiescence and acceptance of the process.
3. It was further stated that the Appellant had not exhausted the **CRC** mechanism before approaching the PRC, hence the Appeal was premature.
4. The Respondent maintained that all proceedings were conducted in a transparent manner, and that the evaluation report was duly approved in accordance with the rules.

4. Proceedings Before PRC:

During the hearing, the Committee examined the record, including the bidding documents, evaluation reports, and written submissions from both sides. It was observed that several irregularities were indeed present in the procurement process, particularly concerning the application of eligibility criteria and additional conditions imposed on bidders that were not part of the approved standard bidding documents, thereby burdening the bidders unnecessarily.

However, before final adjudication, **the Appellant moved an application seeking withdrawal of the Appeal**, despite the apparent merits in his favor. The Committee considered the request but noted that significant official time and effort had already been expended in examining the matter.

5. Findings and Observations:

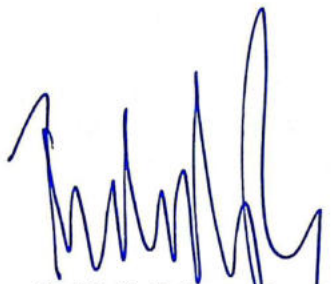
After careful consideration, the Committee observes as follows:

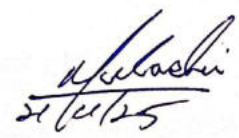
1. The Appellant's withdrawal request, though permissible, was **filed at a stage where proceedings were substantially complete** and the Committee's time and resources had been extensively utilized.
2. The procurement process exhibited several procedural irregularities, particularly concerning the manner of advertisement, verification of bank guarantees, and evaluation of bids. However, as the Appellant has withdrawn his Appeal, the Committee refrains from making findings on the merits.
3. Nonetheless, the Committee deems it appropriate to **record concern** that the PHE Department must ensure **strict compliance with Rules 15, 40, and 42** of the BPPRA Rules in all future procurements to avoid recurrence of such lapses.

6. Order:

In view of the foregoing and in exercise of powers conferred under **Rule 56-A(7)** of the Balochistan Public Procurement Rules, 2014, the following order is passed:

1. The Application for withdrawal of the Appeal is **allowed**.
2. The Appeal stands **disposed off as withdrawn**, however, in view of the wastage of the Committee's time and resources, a **cost of Rs. 200,000/- (Rupees Two Hundred Thousand)** is imposed upon the Appellant, payable to the BPPRA within 15 days.
3. The Public Health Engineering Department is directed to ensure **future adherence to advertisement and bid evaluation requirements** as per the Balochistan Public Procurement Rules, 2014.


Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Procurement Review Committee
(B-PPRA)
21/11/2025

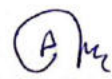

Mubashir Ali Khan (FCIPS)

Member
Procurement Review Committee
BPPRA


Engr. Junaid Shah

Member
Procurement Review Committee
BPPRA


Iftikhar Ahmed Mir
24/11/2025
Member
Procurement Review Committee
BPPRA


Abdul Hayee Baloch

Member
Procurement Review Committee
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